

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3386

By: Clinton

COMMITTEE SUBSTITUTE

An Act relating to evictions; amending 12 O.S. 2021, Section 1148.6, which relates to answer by a defendant in forcible entry and detainer actions; creating a defense against eviction when there are minors living in the rental property; requiring proof of residency; requiring mediation prior to litigation if a mediator is present; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is amended to read as follows:

Section 1148.6. A. In all cases in which the defendant wishes to assert title to the land or that the boundaries of the land are in dispute, he or she shall, before the time for the trial of the cause, file a verified answer or an affidavit which contains a full and specific statement of the facts constituting his or her defense of title or boundary dispute. If the defendant files such a verified answer or affidavit, the action shall proceed as one in ejectment before the proper division of the district court. If the

1 defendant files an affidavit he or she shall file answer within ten
2 (10) days after the date the affidavit is filed.

3 B. In all cases in which the cause of action is based on an
4 asserted breach of a lease by the defendant, or the termination or
5 expiration of a lease under which the defendant claims an interest
6 in the property in a verified answer or affidavit, the plaintiff may
7 proceed with the forcible entry and detainer action instead of an
8 ejectment action.

9 C. In all cases in which there are minor children in the house,
10 a defendant may assert that there are minor children in the
11 household as a defense against eviction by attaching proof of
12 residency for said minor children including, but not limited to,
13 school records or shot records. Upon establishing proof of
14 residency of said minor, the case shall be assigned to mediation
15 prior to the case being litigated, should a mediator be present that
16 day. Otherwise, a ruling may be issued.

17 D. No answer by the defendant shall be required before the time
18 for trial of the cause.

19 SECTION 2. This act shall become effective November 1, 2026.
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